

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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CHAZ RODRIGUEZ,

Plaintiff,

-against-

SUMMONS

POLICE OFFICER BAO LIN, Shield No. 12640, POLICE
OFFICER CLINT ETWARROO, Shield No. 23778,
POLICE OFFICER KEVIN DUNLEAVY, Shield No.
24358, POLICE OFFICER SHARON BARNWELL, and
SERGEANT RONALD GRIFFIN,

Index No.:

The Basis of Venue is:
Location of Incident

Defendants.

Plaintiff designates Kings
County as the place of trial.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 15, 2017

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER BAO LIN, Shield No. 12640, Transit District 30, Hoyt/Schermerhorn
Subway Station, Brooklyn, New York
POLICE OFFICER CLINT ETWARROO, Shield No. 23778, Transit District 30,
Hoyt/Schermerhorn Subway Station, Brooklyn, New York
POLICE OFFICER KEVIN DUNLEAVY, Shield No. 24358, Transit District 30,
Hoyt/Schermerhorn Subway Station, Brooklyn, New York
POLICE OFFICER SHARON BARNWELL, Transit District 30, Hoyt/Schermerhorn
Subway Station, Brooklyn, New York
SERGEANT RONALD GRIFFIN, Hoyt/Schermerhorn Subway Station, Brooklyn, New
York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
CHAZ RODRIGUEZ,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

POLICE OFFICER BAO LIN, Shield No. 12640, POLICE
OFFICER CLINT ETWARROO, Shield No. 23778,
POLICE OFFICER KEVIN DUNLEAVY, Shield No.
24358, POLICE OFFICER SHARON BARNWELL, and
SERGEANT RONALD GRIFFIN,**JURY TRIAL DEMANDED**Defendants.
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Plaintiff CHAZ RODRIGUEZ, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. On October 19, 2014, at approximately 5:30 a.m., plaintiff Chaz Rodriguez, while lawfully present inside of the subway station located at Fulton Street and Clinton Avenue, Brooklyn, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Additionally, plaintiff was subjected to the use of excessive force by the defendant police officers when they maced and tasered plaintiff causing him to suffer serious physical injuries. Thereafter, plaintiff was denied the right to a fair trial in Bronx County Criminal Court until all criminal charges brought against plaintiff were dismissed and sealed on or about December 7, 2015. Plaintiff was deprived of his constitutional when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, denied plaintiff the right to due process and used excessive force against plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff CHAZ RODRIGUEZ is a resident of the state of New York.

3. POLICE OFFICER BAO LIN, Shield No. 12640, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER BAO LIN, Shield No. 12640 is and was at all times relevant herein, assigned to Transit District 30 precinct.

5. POLICE OFFICER BAO LIN, Shield No. 12640, is being sued in his individual and official capacity.

6. POLICE OFFICER CLINT ETWARROO, Shield No. 23778, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. POLICE OFFICER CLINT ETWARROO, Shield No. 23778, is and was at all times relevant herein, assigned to Transit District 30.

8. POLICE OFFICER CLINT ETWARROO, Shield No. 23778, is being sued in his individual and official capacity.

9. POLICE OFFICER KEVIN DUNLEAVY, Shield No. 24358, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. POLICE OFFICER KEVIN DUNLEAVY, Shield No. 24358 is and was at all times relevant herein, assigned to Transit District 30 precinct.

11. POLICE OFFICER KEVIN DUNLEAVY, Shield No. 24358, is being sued in his individual and official capacity.

12. POLICE OFFICER SHARON BARNWELL, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. POLICE OFFICER SHARON BARNWELL is and was at all times relevant herein, assigned to Transit District 30 precinct.

14. POLICE OFFICER SHARON BARNWELL is being sued in her individual and official capacity.

15. SERGEANT RONALD GRIFFIN, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. SERGEANT RONALD GRIFFIN is and was at all times relevant herein, assigned to Transit District 30 precinct.

17. SERGEANT RONALD GRIFFIN, is being sued in his individual and official capacity.

18. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

19. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

20. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

21. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

22. On October 19, 2014, at approximately 5:30 a.m. plaintiff was unlawfully stopped, questioned, frisked, searched, seized, handcuffed, subjected to excessive force, subjected to civil rights violations, falsely arrested and falsely imprisoned, denied the Fifth Amendment Right to Due Process, without reasonable suspicion, probable cause or legal justification, by the individually named police officer defendants.

23. Specifically, on October 19, 2014, at approximately 5:30 a.m., plaintiff was lawfully inside of the subway station located at Fulton Street and Clinton Avenue, Brooklyn, New York when the individually named defendant police officers unlawfully approached, stopped, questioned, frisked, and search plaintiff.

24. At no point in time had plaintiff committed a crime, nor could any reasonable police officer believe he committed a crime.

25. Without provocation or legal justification, the defendant police officers maced plaintiff in the face and tased plaintiff causing him to suffer serious physical injuries, including but not limited to pain from the taser barbs.

26. At no point in time did plaintiff resist arrest in any way.

27. The defendant officers then proceeded to unlawfully arrest and handcuff plaintiff without legal justification or probable cause.

28. Plaintiff asked for medical attention because he was in pain from being tased and maced.

29. Plaintiff was transported to Kings County Hospital Center to receive medical treatment for the injuries he sustained as a result of the excessive force of the defendant police officers.

30. Plaintiff was treated for several injuries at the hospital, including but not limited to contusions and pain to his body, mace exposure, and the injuries as a result of being tased.

31. After plaintiff was treated at the hospital he was transported to the 88th Precinct where he was detained in a holding cell for several hours.

32. Thereafter, on or about October 19, 2014, plaintiff was transported to Bronx Central Booking.

33. On or about October 20, 2014, after a approximately 30 hours in custody, plaintiff was arraigned in Kings County Criminal Court and was release on his own recognizance.

34. The defendant police officers maliciously initiated the prosecution against plaintiff by providing the DA's Office with false, misleading, and incomplete information regarding the facts that formed the officers' basis for arresting plaintiff.

35. After the defendant police officers falsely arrested plaintiff, on October 19, 2014, they charged plaintiff with crimes they had no basis to allege he committed and maliciously prosecuted him.

36. The criminal prosecution of plaintiff was maliciously initiated without probable cause by New York City Police Officers, on October 19, 2014, when the police officers forwarded false, misleading, and/or incomplete information and/or evidence to the Kings County District Attorney's Office as an explanation for why they allegedly had probable cause to arrest and prosecute plaintiff.

37. At no time did the police officers have any legal justification or probable cause to believe plaintiff had committed any crime.

38. Further, the defendant police officers signed and executed a criminal court complaint that contained false, misleading and incomplete information and/or evidence under oath and under the risk of a penalty of perjury.

39. As a result of the false charges initiated by the defendant police officers, plaintiff was forced to appear in Court on approximately 6 occasions before all charges were dismissed and sealed on December 7, 2015.

40. Some of the individually named police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, denial of a fair trial, and use of excessive force against plaintiff.

41. The unlawful stop, question, frisk, search, false arrest, false imprisonment, denial of the right to due process, use of excessive force against plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, and frisked, unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and, without reasonable suspicion and/or probable cause, in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

49. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

50. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

53. The conduct of defendants in stopping, frisking, and searching plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

54. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

55. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

56. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

58. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 57 with the same force and effect as if more fully set forth at length herein.

59. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. The use of excessive force by defendants in macing him in his face and tasing him is an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

67. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

69. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein

70. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

71. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

72. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

73. In withholding/creating false evidence against plaintiff Chaz Rodriguez, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

74. As a result of the foregoing, plaintiff Chaz Rodriguez, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

77. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Failure to Intervene

78. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 77 with the same force and effect as if more fully set forth at length herein.

79. The defendants that did not physically touch plaintiff, but were present when other officers violated plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

80. Defendants failed to intervene to prevent the unlawful conduct described herein.

81. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

82. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

86. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Chaz Rodriguez demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 15, 2017

By: _____/s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER BAO LIN, Shield No. 12640, Transit District 30, Hoyt/Schermerhorn
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POLICE OFFICER SHARON BARNWELL, Transit District 30, Hoyt/Schermerhorn
Subway Station, Brooklyn, New York
SERGEANT RONALD GRIFFIN, Hoyt/Schermerhorn Subway Station, Brooklyn, New
York

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 15, 2017

/s/
STUART E. JACOBS